

#	Case Name	Tentative Ruling
101		
102	Do v Nguyen, 2024-01406383	MOTION FOR RECONSIDERATION – GRANTED Defendant Debbie Tuyet Nguyen (“Defendant”) moves for an order reconsidering the December 8, 2025 denial of Defendant’s Motion to Vacate and vacating the default and default judgment entered in favor of plaintiff William Chung Quang Do (“Plaintiff”) pursuant to Code of Civil Procedure section 473(b). “When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order.” (Code Civ. Proc., § 1008(a).) The court finds Defendant’s Motion for Reconsideration was timely filed. Defendant’s Motion to Vacate demonstrated that Defendant has lived at Tranquil Lane, Huntington Beach, CA 92646 for 16 years and she was never served with any documents in this case before default was entered against her. Thus, the purported service on April 9, 2025 at 10560 Morning Glory, Fountain Valley, CA 92708 was not proper service, as this is not Defendant’s place of residence or usual abode. (Code Civ. Proc., § 415.20(b).) Plaintiff’s opposition to the Motion to Vacate argued that service was attempted at the Huntington Beach address but after diligent attempts, there was no answer. The fact that service was attempted and could not be completed at the Huntington Beach address does not make service at the Fountain Valley address proper.

		Further, while Plaintiff's opposition to the Motion to Vacate was accompanied by a Grant Deed showing that the Fountain Valley property was granted to Defendant on January 30, 2021, this alone does not show that service was proper, as substituted service can only be made at a person's dwelling house, usual place of abode, usual place of business, or usual mailing address (Code Civ. Proc., § 415.20(b) and there is no evidence that the Fountain Valley satisfies any of these requirements. Because Defendant has proven that service was invalid, the default judgment is void and must be set aside. (Ramos v. Homeward Residential, Inc. (2014) 223 Cal.App.4th 1434, 1444 [judgment based on improper service is void]; Code Civ. Proc., § 473(d) [stating court may set aside any void judgment or order].) In light of the above, the Motion for Reconsideration is GRANTED. Upon reconsideration, the Motion to Vacate is GRANTED on the ground that service was improper, The Court ORDERS both the default and default judgment vacated. Defendant is further ORDERED to file a responsive pleading to the Complaint within 20 days. Both parties claim that the others' motion papers were never served. However, they were both able to timely file oppositions and replies, so any issues regarding service are found to have been waived. The parties are ordered to meet and confer to ensure that each side has the proper electronic service addresses for future service. Moving party to give notice.
103		
104	Integrated Demolition and Remediation v. Socal Lien Solutions, 2025-01460626	DEMURRER TO AMENDED COMPLAINT – OVERRULED Defendants Beverly Hills Law Corp., PC ("BHLC") and Sagar Parikh demur to the third, seventh, and eighth